

Arjun Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 21 February 2019 · Writ-C No. 1881 of 2019 · **Writ disposed; assessing officer to pass a fresh order after hearing; 11 June 2018 order to abide that order.**

HEADNOTE

After a section 135 FIR and a provisional assessment, objections were decided on 11 June 2018 without a personal hearing. The Division Bench did not decide unauthorised use or quantum. It permitted a comprehensive application and directed the assessing officer to pass a fresh order after hearing within two months, the 11 June 2018 order to abide that order.

FACTUAL SUMMARY

On 27 November 2017 a check meter installed at the petitioner's premises showed no difference in load or consumption. On 28 January 2018 the distribution licensee recorded unauthorised use and lodged an FIR under section 135 of the Electricity Act, 2003. The petitioner received the checking papers and a provisional assessment notice dated 3 February 2018 only on 6 March 2018. After an earlier writ directed decision of his objections, he objected on 6 June 2018; the authority disposed of those objections on 11 June 2018 without a personal hearing.

HOLDING-UNITS

INTERPLAY · EA2003::135

personal hearing on objections to provisional assessment after s.135 FIR

HOLDING

Where objections to a provisional assessment following a checking and FIR under section 135 are decided without a personal hearing, the writ court may dispose of the petition by permitting a comprehensive application and directing the assessing officer to pass a fresh order after hearing within a fixed time; the earlier order shall abide that fresh order. ¶ 1

FLAG order also invokes the electricity supply code without identifying a clause

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy After a section 135 FIR and a provisional assessment, objections were decided on 11 June 2018 without a personal hearing. The Division Bench did not decide unauthorised use or quantum.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER USED ELECTRICITY THROUGH UNAUTHORISED MEANS, AND WHETHER THE 28 JANUARY 2018 CHECKING IS CONSISTENT WITH THE 27 NOVEMBER 2017 CHECK-METER RESULT

¶ 1

NOT DECIDED — VALIDITY OF THE FIR LODGED UNDER SECTION 135 OF THE ELECTRICITY ACT, 2003

¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE PROVISIONAL ASSESSMENT AND OF THE 11 JUNE 2018 ORDER ON OBJECTIONS

¶ 1

